

Chapter 173-425 WAC OUTDOOR BURNING Last Update: 3/13/00 WAC 173-425-010 Purpose. 173-425-020 Applicability. 173-425-030 Definitions. 173-425-040 Areas where certain types of outdoor burning are prohibited. 173-425-050 Other prohibitions/requirements that apply to all outdoor burning. 173-425-060 Outdoor burning permit program/requirements. 173-425-070 Variances. 173-425-080 Severability. DISPOSITION OF SECTIONS FORMERLY CODIFIED IN THIS CHAPTER 173-425-035 Episodes. [Order DE 77-19, § 173-425-035, filed 10/24/77. Formerly WAC 18-12-035.] Re-pealed by WSR 89-02-055 (Order 88-39), filed 1/3/89. Statutory Authority: Chapters 70.94 and 43.21A RCW. 173-425-036 Curtailment during episodes or impaired air quality. [Statutory Authority: RCW 70.94.331. WSR 90-19-062 (Order 90-10), § 173-425-036, filed 9/17/90, effective 10/18/90. Statutory Authority: Chapters 70.94 and 43.21A RCW. WSR 89-02-055 (Order 88-39), § 173-425-036, filed 1/3/89.] Repealed by WSR 92-24-077 (Order 91-57), filed 12/1/92, effective 1/1/93. Statutory Authority: Chapter 70.94 RCW. 173-425-045 Prohibited materials. [Statutory Authority: Chapters 70.94 and 43.21A RCW. WSR 89-02-055 (Order 88-39), § 173-425-045, filed 1/3/89; Order DE 77-19, § 173-425-045, filed 10/24/77. Formerly WAC 18-12-045.] Repealed by WSR 92-24-077 (Order 91-57), filed 12/1/92, effective 1/1/93. Statutory Authority: Chapter 70.94 RCW. 173-425-055 Exceptions. [Statutory Authority: RCW 70.94.331. WSR 90-19-062 (Order 90-10), § 173-425-055, filed 9/17/90, effective 10/18/90; Order DE 77-19, § 173-425-055, filed 10/24/77. Formerly WAC 18-12-055.] Repealed by WSR 92-24-077 (Order 91-57), filed 12/1/92, effective 1/1/93. Statutory Authority: Chapter 70.94 RCW. 173-425-065 Residential open burning. [Statutory Authority: RCW 70.94.331. WSR 90-19-062 (Order 90-10), § 173-425-065, filed 9/17/90, effective 10/18/90. Statutory Authority: Chapters 70.94 and 43.21A RCW. WSR 89-02-055 (Order 88-39), § 173-425-065, filed 1/3/89; Order DE 77-19, § 173-425-065, filed 10/24/77. Formerly WAC 18-12-065.] Repealed by WSR 92-24-077 (Order 91-57), filed 12/1/92, effective 1/1/93. Statutory Authority: Chapter 70.94 RCW. 173-425-075 Commercial open burning. [Statutory Authority: RCW 70.94.331. WSR 90-19-062 (Order 90-10), § 173-425-075, filed 9/17/90, effective 10/18/90. Statutory Authority: Chapters 70.94 and 43.21A RCW. WSR 89-02-055 (Order 88-39), § 173-425-075, filed 1/3/89; Order DE 77-19, § 173-425-075, filed 10/24/77. Formerly WAC 18-12-075.] Repealed by WSR 92-24-077 (Order 91-57), filed 12/1/92, effective 1/1/93. Statutory Authority: Chapter 70.94 RCW. 173-425-085 Agricultural open burning. [Statutory Authority: RCW 70.94.331. WSR 90-19-062 (Order 90-10), § 173-425-085, filed 9/17/90, effective 10/18/90. Statutory Authority: Chapters 70.94 and 43.21A RCW. WSR 89-02-055 (Order 88-39), § 173-425-085, filed 1/3/89; Order DE 77-19, § 173-425-085, filed 10/24/77. Formerly WAC 18-12-085.] Repealed by WSR 92-24-077 (Order 91-57), filed 12/1/92, effective 1/1/93. Statutory Authority: Chapter 70.94 RCW. 173-425-090 Local air authority may issue variance. [Statutory Authority: Chapter 70.94 RCW. WSR 92-24-077 (Order 91-57), § 173-425-090, filed 12/1/92, effective 1/1/93.] Repealed by WSR 00-07-066 (Order 97-39), filed 3/13/00, effective 4/13/00. Statutory Authority: RCW 70.94.700, [70.94.]755 and Governor's Executive Order 97-02. 173-425-095 No burn area designation. [Statutory Authority: RCW 70.94.331. WSR 90-19-062 (Order 90-10), § 173-425-095, filed 9/17/90, effective 10/18/90. Statutory Authority: Chapters 70.94 and 43.21A RCW. WSR 89-02-055 (Order 88-39), § 173-425-095, filed 1/3/89; Order DE 77-19, § 173-425-095, filed 10/24/77. Formerly WAC 18-12-095.] Repealed by WSR 92-24-077 (Order 91-57), filed 12/1/92, effective 1/1/93. Statutory Authority: Chapter 70.94 RCW. 173-425-100 Penalties. [Statutory Authority: Chapter 70.94 RCW. WSR 92-24-077 (Order 91-57), § 173-425-100, filed 12/1/92, effective 1/1/93. Statutory Authority: RCW 70.94.331. WSR 90-19-062 (Order 90-10), § 173-425-100, filed 9/17/90, effective 10/18/90; Order DE 77-19, § 173-425-100, filed 10/24/77. Formerly WAC 18-12-100.] Repealed by WSR 00-07-066 (Order 97-39), filed 3/13/00, effective 4/13/00. Statutory Authority: RCW 70.94.700, [70.94.]755 and Governor's Executive Order 97-02. 173-425-110 Severability. [Statutory Authority: Chapter 70.94 RCW. WSR 92-24-077 (Order 91-57), § 173-425-110, filed 12/1/92, effective 1/1/93.] Repealed by WSR 00-07-066 (Order 97-39), filed 3/13/00, effective 4/13/00. Statutory Authority: RCW 70.94.700, [70.94.]755 and Governor's Executive Order 97-02. 173-425-115 Land clearing projects. [Statutory Authority: RCW 70.94.331. WSR 90-19-062 (Order 90-10), § 173-425-115, filed 9/17/90, effective 10/18/90; Order DE 77-19, § 173-425-115, filed 10/24/77. Formerly WAC 18-12-115.] Repealed by WSR 92-24-077 (Order 91-57), filed 12/1/92, effective 1/1/93. Statutory Authority: Chapter 70.94 RCW. 173-425-120 Department of natural resources—Smoke management plan. [Statutory Authority: RCW 70.94.331. WSR 90-19-062 (Order 90-10), § 173-425-120, filed 9/17/90, effective 10/18/90; Order DE 77-19, § 173-425-120, filed 10/24/77. Formerly WAC 18-12-120.] Repealed by WSR 92-24-077 (Order 91-57), filed 12/1/92, effective 1/1/93. Statutory Authority: Chapter 70.94 RCW. 173-425-130 Notice of violation. [Statutory Authority: RCW 70.94.331. WSR 90-19-062 (Order 90-10), § 173-425-130, filed 9/17/90, effective 10/18/90. Statutory Authority: Chapters 70.94 and 43.21A RCW. WSR 89-02-055 (Order 88-39), § 173-425-130, filed 1/3/89; Order DE 77-19, § 173-425-130, filed 10/24/77. Formerly WAC 18-12-130.] Repealed by WSR 92-24-077 (Order 91-57), filed 12/1/92, effective 1/1/93. Statutory Authority: Chapter 70.94 RCW. Certified on 10/25/2019 Page 1